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Substance Over Form Revisited: GAAR under the Income-tax Act, 2025

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Meaning of GAAR

GAAR (General Anti-Avoidance Rule) refers to a set of provisions under the Income-tax Act that empower tax authorities to **deny tax** benefits arising from arrangements whose **main purpose** is to obtain a tax advantage.

Core idea: “Substance over form”

Even if a transaction looks legal on paper, it can be ignored if it lacks real commercial purpose. It means that tax authorities will look beyond the legal structure of a transaction and examine its real intent and economic reality. If an arrangement is structured in a way that appears valid on paper but is primarily designed to obtain a tax benefit without genuine commercial purpose, it can be disregarded or recharacterized. In essence, the law prioritizes what actually happens over how it is presented.

Key elements:

- Applies to **Impermissible Avoidance Arrangements (IAA)**
- Focus on:
 - Main purpose = tax benefit
 - Lack of commercial substance
 - Misuse of provisions

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Key principles underlying GAAR

The GAAR provisions in the 1961 Act and the new 2025 Act are conceptually aligned. The 2025 Act essentially **restates GAAR in a textually simplified way** while preserving its substance.

(a) Main purpose test

- An arrangement is an IAA if its **main purpose is to obtain a tax benefit** and one of the tainted elements exists.
- There is a **rebuttable presumption**: if a step in, or part of, the arrangement has tax benefit as its main purpose, the whole arrangement is presumed to be for tax benefit **unless the taxpayer proves otherwise**.

(b) Substance over form / lack of commercial substance

An arrangement is deemed to **lack commercial substance** where, for example:

- The **substance or effect differs significantly** from its legal form.
- It involves **round-trip financing**, accommodating parties, or **offsetting elements** that broadly cancel each other out.
- Transactions disguise the **value, location, source, ownership or control of funds or assets**.
- The location of assets, residence, or transaction is chosen without **substantial commercial purpose other than obtaining a tax benefit**.
- There is **no significant effect on business risks or net cash flows** apart from the tax benefit.

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(c) Misuse or abuse of the Act

A tainted element arises where the arrangement **results, directly or indirectly, in the misuse or abuse of provisions of the Act** – for example, exploiting a relief in a way Parliament clearly did not intend.

(d) Non-arm's-length rights or obligations

GAAR also looks at whether the arrangement **creates rights or obligations not ordinarily created between arm's-length parties**, suggesting artificial structuring solely for tax reasons (e.g., unusual profit allocation, risk allocation, or financing terms).

(e) Unusual means or manner

A tainted element also exists if the arrangement is **entered into or carried out by means or in a manner not ordinarily employed for bona fide purposes** – e.g., convoluted multi-step routing with no real business justification.

(f) Broad remedial powers

Once GAAR applies, authorities may, “in the circumstances of the case”:

- disregard, combine or recharacterise steps or transactions, treat the arrangement (or part) as **not having been entered into**;
- treat **connected persons or accommodating parties as one**, reallocate income, deductions, losses, or reliefs;
- **re-characterise equity as debt, capital receipts as revenue (or vice versa)**, deem residence or situs of assets/transactions to be different;
- look through corporate structures.

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How GAAR is applied in practice Typical situations that attract GAAR scrutiny

Based on the statute, CBDT Circular No. 7/2017, and recent case law, GAAR scrutiny commonly arises where:

1. Round-trip or circular funding

- Funds leave an Indian entity and re-enter via related entities or tax-favoured jurisdictions, with little or no real change in risk or cash flows.

2. Conduit/ accommodating entities

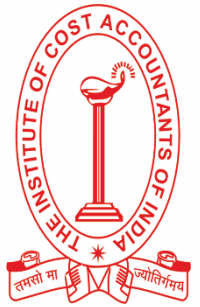
- “Shell” or conduit companies are interposed to access treaty or domestic benefits (e.g., capital gains exemption, low withholding tax) without real decision-making or substance in that jurisdiction.

3. Bonus-stripping or loss-creation schemes

- Highly structured transactions (often in securities) engineered primarily to generate tax-deductible losses or defer tax, sometimes alongside a specific SAAR like section 94(8). GAAR has been upheld even where SAAR arguably exists if the structure goes beyond what SAAR was designed to tackle.

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4. Artificial debt-equity, hybrid, or re-characterisation schemes

- Structures that formally look like equity but economically behave like debt (or vice versa) to obtain interest deductions or avoid dividend tax; GAAR expressly allows re-characterisation.

5. Treaty shopping and offshore exits

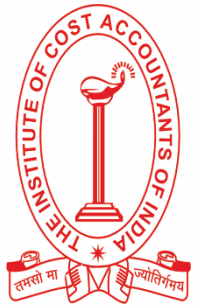
- Use of low-substance entities in treaty jurisdictions to route investments or exits, particularly where LOB/PPT provisions do not fully address the case or where commercial substance is lacking; GAAR may deny treaty benefits notwithstanding a tax residency certificate, especially after section 90(2A).

6. Schemes approved under other laws but used mainly for tax

- Even if a corporate restructuring is approved by NCLT or a court, GAAR can still apply if the arrangement lacks commercial substance and is primarily tax-motivated; CBDT has expressly flagged this possibility.

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Specific Anti-Avoidance Rules (SAAR)

SAAR are targeted provisions under tax law that are enacted to prevent particular forms of tax avoidance.

These rules address clearly identified loopholes or abusive tax practices by prescribing specific conditions, restrictions, or consequences for certain transactions.

Unlike broad anti-avoidance principles, SAAR applies only to defined situations contemplated by the legislature, thereby providing greater certainty and predictability in its application.

Its purpose is to ensure that taxpayers do not exploit technical gaps in the law to obtain unintended tax benefits. Examples of SAAR in Indian tax law include transfer pricing provisions regulating transactions between associated enterprises, deemed dividend provisions, and rules disallowing excessive or unreasonable payments to related parties.

In essence, SAAR operates as a focused legislative tool to curb specific avoidance arrangements while maintaining clarity in tax administration.

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GAAR vs SAAR (Specific Anti-Avoidance Rules)

(a) Conceptual differences

1. Scope

- **GAAR:** General, applies to *any* arrangement satisfying the IAA tests.
- **SAAR:** Targeted rules addressing specific mischiefs (e.g., dividend stripping, bonus stripping, transfer pricing, thin capitalization, low-value cash payments, undervalued property transfers). Examples:
 - Section 94(7) and 94(8) (dividend/bonus stripping),
 - Sections 92-92F (transfer pricing),
 - Section 94B (interest limitation),
 - Section 56(2)(x) (taxing receipts without/inadequate consideration),
 - Sections 40A(2), 40A(3).^[i]

2. Trigger

- **GAAR** needs a **main purpose of tax benefit** plus a tainted element (misuse, lack of commercial substance, etc.).
- **SAAR** typically applies **automatically** based on factual conditions (e.g., acquisition/sale within specified dates, specified related-party payments, thin-cap ratios) regardless of subjective “purpose”.

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Legal consequences

- **GAAR:** Very broad powers — re-characterisation of instruments, treating persons as one, altering situs/residence, etc.
- **SAAR:** Specific mechanical consequences prescribed in the section itself (e.g., denial of loss, disallowance of expenditure, substitution of FMV for consideration).

Process and approvals

- **GAAR:** Requires AO→PCIT/CIT→Approving Panel, with specific forms and time-lines; higher threshold and safeguards.
- **SAAR:** Applied directly by AO as part of normal assessment; no special approvals.

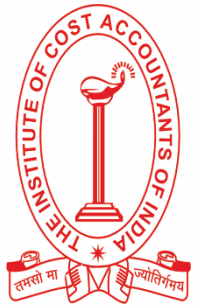
Interaction (co-existence)

- CBDT has stated that **GAAR and SAAR can co-exist**, but:
 - if a **SAAR** squarely covers the mischief, GAAR normally **need not** be invoked;
 - where SAAR is inadequate or arrangements go beyond its design, GAAR may still apply.

Recent decisions (e.g., **Ayodhya Rami Reddy** on bonus-stripping) show courts are willing to let GAAR operate **in addition** to SAAR where the facts indicate broader abuse.

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Practical examples: when GAAR is likely / unlikely to apply

Example 1 – Pure tax-driven conduit with no substance (GAAR likely)

Facts

A non-resident investor sets up a shell company in Country X (a low-tax jurisdiction with a favourable treaty with India).
Country XCo:

- has minimal or no employees, board meetings are rubber-stamped by India-based advisers,
- holds only shares of one Indian company, acquired just before an exit,
- is funded by back-to-back loans from group companies, and
- soon after selling the Indian shares, distributes gains up the chain and is wound up.

Analysis

- Main purpose appears to be to obtain treaty capital-gains exemption (tax benefit).
- Features like **lack of commercial substance, conduit financing, accommodating party** are present.
- Even if TRC and LOB are formally satisfied, GAAR may be invoked (and section 90(2A) permits GAAR to override treaty benefits).
- Likely outcome under GAAR: deny treaty benefit, tax gains in India as if realised by the real investor, possibly ignore Country XCo.

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Example 2 – Holding company with genuine substance (GAAR unlikely)

Facts

A multinational sets up a regional holding company in Singapore:

- multi-jurisdictional investments (India and others),
- a real management team, office, and independent directors,
- treasury and regional management functions executed from Singapore,
- structure existing for many years, with reinvested earnings and operational synergies.

It exits the Indian subsidiary, claiming treaty benefits.

Analysis

- There is clear **commercial rationale** for the location and structure; trade and management substance exist.
- Tax benefit (favourable capital gains treatment) is an **incidental consequence**, not clearly the main purpose.
- On Vodafone/Azadi principles and CBDT's own GAAR guidance, such structures are generally respected if not sham and if substance is commensurate with claimed benefits.^{[i][ii]}

Likely: GAAR not invoked, though authorities may still test LOB/PPT and beneficial ownership.

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Example 3 – Bonus-stripping through shares post-2023 (GAAR and SAAR)

Facts

An individual:

- buys large quantities of listed shares just before a declared 1:1 bonus,
- receives bonus shares (cost = nil by statute),
- shortly thereafter sells original shares at a large loss while retaining bonus shares,
- claims short-term capital loss to set off other gains.

By itself, this closely resembles “bonus-stripping”. Section 94(8) (as amended) now applies to **securities** as well, but taxpayer structures trades through different accounts/entities so as to technically fall outside the precise wording of SAAR for some legs.

Analysis

- The **pattern and timing** indicate main purpose = tax loss.
- Arrangement involves **pre-ordained steps** and lacks commercial substance (no real change in economic exposure).
- SAAR covers the core mischief; if some legs are crafted to bypass SAAR, GAAR can still apply to the whole arrangement.^{[i][ii]}

Likely: GAAR invoked to deny the artificial loss even where SAAR is not literally triggered by every step.

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Example 4 – Choosing between two lawful routes with different tax outcomes (GAAR not applicable)

Facts

A company wishes to raise funds and chooses between:

- issuing fresh equity, or
- issuing NCDs (interest deductible).

It chooses NCDs because interest is deductible and lenders prefer debt.

Analysis

- Tax consideration clearly exists, but this is a **choice between legislatively permitted options**; there is no artificial step or lack of commercial substance.
- CBDT Circular 7/2017 affirms that GAAR does **not** interfere with a taxpayer's ability to choose one legitimate option over another, even if one is tax-efficient.

Likely: GAAR not applied; specific interest-limitation rules (e.g., section 94B) may still apply if conditions are met.





Example 5 – Court-approved amalgamation driven mainly by business, but with tax benefits (GAAR unlikely)

Facts

Group companies A and B merge under a scheme sanctioned by NCLT. Business reasons:

- eliminating duplication of infrastructure,
- integrated supply chain,
- improved credit rating.

There is also carry-forward of B's business losses into A.

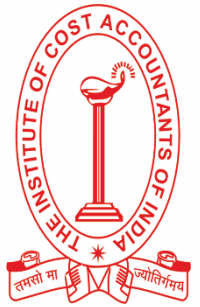
Analysis

- There is clear **commercial rationale** and continuation of genuine business.
- The mere presence of tax benefits (loss carry-forwards) does not make tax the **main purpose**.
- CBDT guidance and courts have indicated that where courts (or NCLT) have already considered tax implications and sanctioned the scheme, GAAR is unlikely to be invoked, absent fraud or misrepresentation.^[i]

Likely: GAAR not triggered.

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Common mistakes & best practices to manage GAAR risk

Common mistakes / pitfalls

1. Treating form as sufficient and ignoring substance

- Over-reliance on documentation (TRC, board minutes) without matching factual reality (location of key personnel, decision-making, economic risk).

2. Assuming SAAR “immunity”

- Believing that if a transaction is technically outside a SAAR (e.g., by clever sequencing), GAAR cannot apply. Courts have allowed GAAR where SAAR is not exhaustive.

3. Ignoring de-minimis and grandfathering thresholds but mis-calculating them

- GAAR applies only where aggregate tax benefit $\geq$ INR 3 crore per year; mis-computing this (e.g., on gross instead of net benefit, or per taxpayer rather than per “arrangement”) can mislead risk assessment.

4. Using shell or low-substance entities for treaty benefits

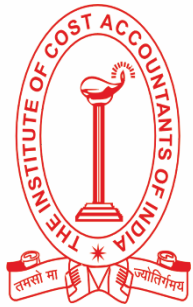
- “Letter-box” companies, back-to-back arrangements and minimal local presence are classic GAAR red flags, especially after Tiger Global and related jurisprudence.

5. No contemporaneous documentation of commercial purpose

- Many GAAR disputes hinge on whether there was genuine commercial rationale. Absence of internal notes, board papers, business plans weakens the taxpayer’s case.

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Best practices to reduce GAAR risk

1. Substance, not just structure

- Ensure that entities used in a structure **perform real functions, employ people, assume risks and use assets** proportionate to the income and treaty benefits claimed.

2. Document commercial rationale up-front

- For major transactions (holding structures, intra-group financing, restructurings), maintain written records explaining non-tax objectives: market access, operational synergies, regulatory constraints, etc.

3. Check both SAAR and GAAR up-front

- Systematically analyse potential SAAR (e.g., s.94B, s.56(2)(x), TP rules) and then evaluate GAAR exposure based on main purpose and tainted elements.

4. Use advance rulings strategically

- Under both the current BAR regime and the new unified Form No.120, taxpayers can seek advance rulings on whether a proposed arrangement would be an IAA under GAAR.

5. Monitor tax-benefit thresholds and timing

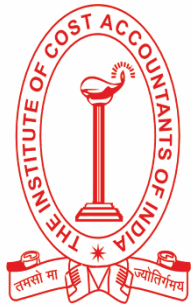
- Keep track of cumulative tax benefits per arrangement per year to see if GAAR thresholds are crossed; structure legitimate transactions with clear business timelines not dictated only by tax events.

6. Consistency across years

- Inconsistent positions (e.g., suddenly relocating management without business reason just before exit)

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Recent developments (2025–2026): new Act & Rules

(a) Income-tax Act, 2025 – GAAR provisions (effective 1 April 2026)

The **Income-tax Act, 2025** consolidates and restates GAAR in **Chapter XI (sections 178–184)**. The intent is *continuity*, not a major policy shift.

Key features:

1. Section 178 – Overriding GAAR rule

- “Notwithstanding anything contained in this Act, an arrangement entered into by an assessee may be declared to be an impermissible avoidance arrangement and the tax consequences may be determined under this Chapter.”^[i]
- Like section 95, it confirms GAAR can apply to any **step or part** of an arrangement.

2. Section 179 – Definition of impermissible avoidance arrangement

- Mirrors section 96: main-purpose test plus tainted elements (non-arm’s-length rights, misuse/abuse of the Act, lack of commercial substance under section 180, non-bona fide manner).^{[ii][i]}
- Retains the **rebuttable presumption** similar to section 96(2).

3. Section 180 – Arrangement to lack commercial substance

- Largely copies section 97’s tests (substance vs form, round-trips, accommodating parties, disguising source/location/ownership, artificial situs, no material change in risks/cash flows).^{[ii][i]}

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4. Section 181 – Consequences

- Substantially reflects section 98, with power to recharacterise arrangements, treat equity as debt, combine or ignore steps, and adjust situs/residence, but the Select Committee recommended reinstating the phrase “**in the circumstances of the case**” as an important contextual safeguard.

5. Sections 182–184 – Connected persons and definitions

- Re-enact powers to treat connected persons as one, disregard accommodating parties, and look through corporate form, plus broad definitions of “arrangement”, “asset”, “benefit”, “connected person”, etc.

6. Section 183 – Application of this Chapter

- Corresponds to sections 100–101 of the 1961 Act: **GAAR applies in addition to, or in lieu of, any other basis** for determining tax liability and shall apply in accordance with guidelines/conditions to be prescribed.

Policy message from the Select Committee and Explanatory Memorandum: **no dilution or expansion** of GAAR is intended; the chapter is largely a **restatement** of the existing law with clearer drafting.



Income-tax Rules 2026 – GAAR-related rules : The **Income-tax Rules, 2026** (for the 2025 Act) replicate existing GAAR rules with updated references:

1. Rule 127 – Part-arrangement consequences

- Where only **part of an arrangement** is declared an IAA, tax consequences are determined **with reference to that part only** – same principle as Rule 10UA under the 1961 Rules.

2. Rule 128 – Cases where GAAR does not apply

- Replicates current Rule 10U carve-outs:
 - Arrangements where aggregate **tax benefit ≤ INR 3 crore** in the relevant year (for all parties).
 - Certain **Foreign Institutional Investors (FIIs)** and their non-resident investors where domestic law is opted and no treaty benefit claimed.
 - Grandfathering for income from transfer of investments made before **1 April 2017**, with the clarification that GAAR may still apply to tax benefits obtained on or after **1 April 2017**.

3. Rule 129 & Rule 130 – Procedure and time-lines

- New Rules 129-130 (mirroring Rules 10UB-10UC) codify:
 - Contents of AO's notice (details of arrangement, tax benefit, GAAR grounds, evidence).
 - Forms for references and directions (Forms 62-64).
 - Time limits for PCIT directions (e.g., no directions after one month from the end of month in which assessee's reply is received).



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Treaty and PPT developments

CBDT Circular No. 1/2025 provides detailed guidance on the **Principal Purpose Test (PPT)** in DTAAAs (inserted via the MLI or bilateral protocols).

- PPT is **treaty-level GAAR**: treaty benefits may be denied where obtaining that benefit was one of the principal purposes of an arrangement unless granting the benefit is consistent with the treaty's object and purpose.
- CBDT clarifies its temporal application and notes that existing **treaty-specific grandfathering** (e.g., Mauritius, Singapore, Cyprus) continues to operate.
- In practice, **domestic GAAR and PPT may both be relevant**: authorities may test arrangements under PPT for treaty entitlement and under domestic GAAR for overall income-tax consequences.

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Recent Case Law

Key Pointers – *Authority for Advance Rulings v. Tiger Global International II Holdings* (2026)

•Date of Judgment:

- Hon'ble Supreme Court delivered its judgment on **15 January 2026**.

•Case Title:

- *The Authority for Advance Rulings (Income Tax) v. Tiger Global International II Holdings* ("Tiger Global").

•Core Issue:

- Whether Tiger Global was entitled to **capital gains tax exemption** under the India-Mauritius Double Taxation Avoidance Agreement.

•Supreme Court's Holding:

- Tiger Global was **denied treaty benefits** under the India-Mauritius DTAA.

•Significance of Judgment:

- Marks a **major shift in cross-border taxation and treaty interpretation in India**.
- Challenges **long-standing precedents** relied upon by foreign investors.
- Indicates stricter scrutiny of treaty-based tax planning structures.

•Delhi High Court Overruled:

- SC overturned the **2025 Delhi High Court ruling**, which had favoured Tiger Global.
- The SC's decision in *Tiger Global* represents a watershed moment in Indian tax jurisprudence, signalling a definitive move from the form-based assessment to a substance-driven scrutiny characteristic of the GAAR regime

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Facts & Findings of the Case

The **Tiger Global ruling (2026)** is a landmark decision by the Supreme Court of India that significantly reshaped India's approach to cross-border taxation.

The case arose from Tiger Global Management's 2018 sale of its stake in Flipkart to Walmart for approximately **\$1.6 billion**, as part of Walmart's larger **\$16 billion acquisition of Flipkart**. Tiger Global had routed its investment through Mauritius-based entities and claimed exemption from Indian capital gains tax under the India-Mauritius Double Taxation Avoidance Agreement.

However, the Supreme Court held that these Mauritius entities were merely **conduit companies lacking genuine commercial substance**, created primarily to obtain treaty benefits, and therefore constituted an **impermissible tax avoidance arrangement**.

The Court ruled that a **Tax Residency Certificate alone is not conclusive proof of treaty entitlement**, and that **GAAR (General Anti-Avoidance Rules)** can override treaty benefits where the structure is artificial or tax-driven.

In overturning the Delhi High Court's earlier ruling, the Court firmly established the principle of **substance over form**, signalling that India will closely scrutinise offshore holding structures and deny treaty benefits where they are used chiefly for tax avoidance.

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Critique of Tiger Global Judgment – Key Pointers

TRC No Longer Conclusive

- The Supreme Court held that a **Tax Residency Certificate (TRC)** alone is **insufficient** to establish treaty residency, weakening its long-recognised evidentiary value.
- **Departure from Established Precedent**
 - The ruling departs from earlier decisions like *Union of India v. Azadi Bachao Andolan* and *Vodafone International Holdings BV v. Union of India*, which had upheld TRC-based treaty entitlement and legal certainty for investors.
- **Expanded Use of GAAR**
 - The Court broadly applied **GAAR**, even though Tiger Global's investment was made before 2017 and arguably qualified for **grandfathering protection** from GAAR scrutiny.
- **Procedural Safeguards Overlooked**
 - Critics argue that the statutory process for invoking **GAAR**—including proper factual inquiry and satisfaction of legal conditions—was not fully followed before treating the transaction as tax avoidance.
- **Greater Tax Uncertainty for Foreign Investors**
 - By emphasising **substance-over-form** and requiring scrutiny beyond formal documents like TRC, the ruling creates uncertainty for offshore investment structures commonly used by global investors



Conclusion of the above case law :

By diluting the evidentiary value of a TRC and treating it as a mere entry requirement rather than conclusive evidence, the Court has effectively shifted the burden of proof onto the taxpayer to demonstrate genuine commercial substance.

However, the judgment leaves several critical legal questions in its wake.

The Court's interpretation of Rule 10U(2), undermines the statutory promise of grandfathering for pre-2017 investments but also introduces significant retroactive uncertainty for global investors.

For a nation seeking to remain a premier destination for foreign direct investment, the *Tiger Global* ruling serves as a stark reminder that legal certainty may now be secondary to a rigorous, and sometimes unpredictable, substance-over-form inquiry.





Reaction of CBDT post Tiger Global Ruling

On March 31, 2026, the CBDT issued notifications (No. 54/2026) amending Rule 10U of the Income-tax Rules, 1962, and Rule 128 of the Income-tax Rules, 2026, to protect investments made before April 1, 2017, from General Anti-Avoidance Rules (GAAR).

This move follows the Supreme Court's [*Tiger Global*](#) ruling, reinforcing that pre-2017 investments are grandfathered, regardless of when gains are realised.

Key takeaways from the CBDT amendment:

- **Grandfathering Protection:** Income derived from the transfer of investments made before April 1, 2017, is exempt from GAAR.
- **Applicability:** Applies to both the old Income Tax Rules, 1962 (Rule 10U), and the new Income Tax Rules, 2026 (Rule 128).
- **Investor Confidence:** The change was designed to restore certainty and alleviate concerns regarding retrospective tax applications after the *Tiger Global* case.

Scope: While the Supreme Court highlighted that pre-2017 investments could still be scrutinized for commercial substance, these amendments ensure that GAAR will not be invoked for income from the transfer of such investments

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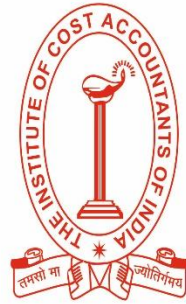
Sum up

- GAAR is a **general anti-abuse framework**, not a routine adjustment tool.
- It focuses on arrangements whose **main purpose is tax benefit** and which display **commercial artificiality or misuse/abuse**.
- The **new Income-tax Act, 2025** and accompanying Rules do **not fundamentally change GAAR**; they carry forward the existing Chapter X-A regime with updated numbering, refined drafting, and essentially the same thresholds, carve-outs and procedures.
- For taxpayers and advisors, the central discipline remains: **design structures around genuine commercial substance**, document that substance clearly, and treat tax as a constraint to be managed – not the sole driver of complex arrangements.

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Statutory Body under an Act of Parliament
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www.icmai.in

Headquarters:

CMA Bhawan, 3, Institutional Area, Lodhi Road, New Delhi - 110 003

Ph: 011-24622156

Kolkata Office:

CMA Bhawan, 12, Sudder Street, Kolkata - 700 016

Ph: 033-40364743/40364735

Tax Research Department

Email: trd@icmai.in / trd.director@icmai.in

Ph: 033 - 4036 4714 / 4036 4718

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